



UNANI, AYURVEDIC AND HOMEOPATHIC PRACTITIONERS (AMENDMENT) ORDINANCE, 2002

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UNANI, AYURVEDIC AND HOMOEOPATHIC PRACTITIONERS

(SECOND AMENDMENT) ORDINANCE, 2002

ORDINANCE LXI OF 2002

An Ordinance further to amend the Unani, Ayurvedic and Homoeopathic Practitioners Act, 1965

[4th October, 2002]

Whereas it is expedient further to amend the Unani, Ayurvedic and Homeopathic Practitioners Act, 1965 (II of 1965), for the purposes hereinafter appearing;

And whereas, the President is satisfied that- circumstances exist which render it necessary to take immediate action;

Now, therefore, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No.1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement—(1) This Ordinance may be called the Unani, Ayurvedic and Homeopathic Practitioners (Second Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of section 4, Act II of 1965.—In the Unani, Ayurvedic and Homeopathic Practitioners Act, 1965 (II of 1965), hereinafter referred to as the said Act, in section 4, in subsection (1), in clause (e),—

(a) after the word "scientist" the words "from the related field" shall be inserted; and

(b) after the word "Health" the words "who shall also be the Chairman of the Finance Committee" shall be added.

3. Amendment of section 5, Act II of 1965.—In the said Act, in section 5, in clause (d),—

(a) after the word "scientist" the words "from the related field" shall be inserted; and

(b) after the word "Health" the words "who shall also be the Chairman of the Finance Committee" shall be added.

4. Amendment of section 9, Act II of 1965.—In the said Act, in section 9, after subsection (4), the following new subsection shall be added, namely:—

"(5) The election or nomination of the members of, the Council shall be held at least three months prior to the expiry of the prescribed tenure of the Council and expenditure on election shall be born, a by the respective council and if, at any time the council ceases to exist on expiry of its prescribed tenure, all powers and functions of the Council shall, till constitution of new Council or for a period of one year, be exercised and performed by such person or authority as may be appointed by the Federal Government in this behalf, as if such person or authority were the Council."

5. Amendment of section 16, Act II of 1965. In the said Act, in section 16, for subsections (1) and (2), the following shall be substituted, namely:--

"(1) The Council shall, with the previous approval in writing of the Federal Government, appoint a Registrar and Controller of Examination of such terms and conditions as may be determined by the Federal Government and may appoint a person to act in his place during his absence on leave.

(2) An order of the Council appointing, punishing or removing the Registrar and Controller of Examination from office shall not take effect unless confirmed by the Federal Government in writing."

6. Amendment in section 21, Act II of 1965. In the said Act in section 21.—

(a) in subsection (1),—

(i) after the word "Matriculation", the words "with Science" shall be inserted; and

(ii) after the word "given", the words "to those having higher qualification with Science, and" shall be inserted; and

(b) in subsection (2),--

(i) after the word "Matriculation", the words "with Science" shall be inserted; and

(ii) after the word "qualifications", the words "with Science" shall be inserted.

7. Amendment of section 22, Act II of 1965. In the said Act, in section 22, for subsection (3) the following shall be substituted, namely:—

"(3) The examination shall be held under the control of an examining body to be appointed by the Federal Government after consulting the Council.

(4) The Chairperson of the examination body shall be appointed by the Federal Government."

8. Amendment of section 43, Act II of 1965. In the said Act, the existing section 43 shall be numbered as subsection (1) of that section and, after subsection (1) numbered aforesaid, the following new subsections shall be added, namely:-

"(2) The accounts of the Council shall be maintained in such form and manner as the Auditor-General of Pakistan may prescribe.

(3) The accounts of the Council shall be audited by one or more auditors appointed by the Federal Government in consultation with the Auditor-General of Pakistan."

9. Addition of new section 48, Act II of 1965. In the said Act, after section 47, the following new section shall be added, namely:

"48. Policy issues relating to the affairs of the Council.— In the discharge of its function, the Council shall be guided on questions of policy by the instructions, if any, as may be given to it, from time to time by the Federal Government which shall be the sole judge as to whether a question is a question of policy."
